

25SMCV01640 25SMCV01640

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-08-17

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CO%2C08%2F17%2F2026

Source SHA-256: 67b14b699aeedd6bd20cd4bf956d12fb3f97ffce37af119fc55ba99047187495

Case Number: 25SMCV01640 Hearing Date: August 17, 2026 Dept: O

TENTATIVE RULING

August 17, 2026

25SMCV01640 (Rahimian, et. al. v.

Allstate Investment Group, Inc., et. al.)

RELEVANT BACKGROUND

On April 1, 2025, plaintiffs Parviz Rahimian, Shohreh Rashti, and Shahrooz Rahimian (Plaintiffs) filed their complaint against defendants Allstate Investment Group, Inc. (Allstate or Management Company), Rexford Manor Homeowner's Association (the HOA) (collectively, Defendants), and does 1-50. Plaintiffs allege three causes of action: (1) negligence / negligence per se; (2) breach of covenant of good faith and fair dealing; and (3) breach of contract.

Plaintiffs condominium unit is part of a community governed by Rexford Manor Home Association (HOA). (Complaint, ¶ 1) On or about January 4, 2024, Plaintiffs received notice from the HOA that water was leaking from his shower into the unit directly below his." (Id. ¶ 10) Plaintiffs "attempted to coordinate with the downstairs neighbor and the HOA to facilitate repairs," but the "neighbor was uncooperative and engaged in confrontational behavior, including yelling at Plaintiff PARVIZ RAHIMIAN." (Id. ¶ 11) The downstairs neighbor tore down her own ceiling without professional inspection, allegedly destroying "potential evidence regarding the source and scope of the leak." She later filed complaints with the HOA and City claiming "structural damage and imminent

collapse.” (Id. ¶ 12)

Plaintiffs informed the HOA and Management Company that an insurance claim was “open and approved, and requested assistance in gathering necessary information to proceed with repairs and distribute payments.” Plaintiffs complain that the “HOA and Management Company failed to respond in a timely manner, if at all.” (Id. ¶ 13)

Plaintiffs’ downstairs neighbor filed a complaint with the City of Beverly Hills, resulting in an investigation and suspension of permit issuance for Plaintiffs’ unit. The City Attorney allegedly notified the HOA and Management Company. Plaintiffs complain that the HOA and Management Company did not respond or appear at related hearings or inspections. (Id. ¶ 14-15.)

The HOA continued to avoid participating in the dispute between Plaintiffs and their downstairs neighbor. (Id. ¶ 17). In August 2024, Plaintiffs’ attorney attended a hearing at City Hall in Beverly Hills, during which the City allegedly “facilitated an agreement between the involved parties.” This “agreement” allegedly “provided that the downstairs neighbor would select a licensed contractor, obtain the necessary permits, and proceed with the repair work.” (Id. ¶ 18)

Plaintiffs allege that the HOA “intervened” and stated it “wanted to review the scope of proposed work and assume responsibility for the cost and execution of the repairs,” including asserting an “intention to use its own contractor to complete the work, thus further delaying progress and undermining the City-facilitated resolution.” (Id. ¶ 19.) The HOA allegedly “belatedly claimed it would handle the repairs but failed to follow through with any meaningful action.” (Id. ¶ 20.)

INSTANT MOTION

On June 1, 2026, Defendants filed the instant motion for judgment on the pleadings. Plaintiffs filed an opposition, and Defendants filed a reply.

For the reasons set forth below,
Defendants’ motion is GRANTED WITH LEAVE TO AMEND.

DISCUSSION

I.

MOTION FOR JUDGMENT ON THE PLEADINGS

A.

Breach Of Contract

To

state a cause of action for breach of contract, a plaintiff must be able to establish “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

If

a breach of contract claim “is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 307.) In some circumstances, a plaintiff may also “plead the legal effect of the contract rather than its precise language.” (Construction Protective Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 198-199.)

Here,

Defendants argue that Plaintiffs do not allege facts showing a legal duty because Plaintiffs do not attach the governing documents or sufficiently allege their legal effect and a breach. Defendants state that this case involves a leak between independent homeowners and no common area is implicated, and, absent some contractual basis, they cannot have a legal duty in a dispute as between two independent homeowners.

In

opposition, Plaintiffs argue that the complaint alleges that the HOA was responsible for common areas and structural components; the dispute involved damaged structural beams; HOA approvals and execution of insurance documents were required; and Rexford affirmatively displaced a City-facilitated repair plan by announcing that it would take control of the work, use its own contractor, and assume responsibility for the cost and execution of repairs. (Compl., ¶¶ 3-4, 16-22, 25-27.) Additionally, Plaintiffs contend that the

Complaint adequately pleads the legal effect of the governing documents, HOA's maintenance obligations, Plaintiffs' cooperation and efforts to obtain performance, Defendants' breach, and resulting damages. To the extent the Court requires a more express allegation of contractual performance or excuse, Plaintiffs assert that issue is readily curable by amendment.

The

Court finds that the complaint fails to allege facts sufficient to state a cause of action for breach of contract. The Court agrees with Defendants that the complaint does not adequately allege facts establishing a legal duty or a breach. Plaintiffs contend that the Complaint adequately pleads the legal effect of the governing documents, but Plaintiffs do not cite to any paragraphs in the complaint. Upon reviewing the complaint, the Court agrees with Defendants that the allegations are inadequate, and the contract is not attached to the complaint. (See Compl. ¶ 3, 34.) Also, Plaintiff refers to defendants collectively and fails to differentiate between them. (See Compl. ¶ 33-37.)

But

the Court finds that leave to amend is appropriate because it is reasonably possible successful amendment could be made, and Plaintiffs assert that issue is readily curable by amendment.

Accordingly,

Defendants' motion for judgment on the pleadings is GRANTED WITH LEAVE TO AMEND with respect to the breach of contract claim.

B.

Negligence / Negligence Per Se

In

order to state a claim for negligence, a plaintiff must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

"The

negligence per se doctrine, as codified in Evidence Code section 669, creates a presumption of negligence if four elements are established: (1) the defendant violated a statute, ordinance, or regulation of a public entity; (2) the

violation proximately caused death or injury to person or property; (3) the death or injury resulted from an occurrence of the nature of which the statute, ordinance, or regulation was designed to prevent; and (4) the person suffering the death or the injury to his person or property was one of the class of persons for whose protection the statute, ordinance, or regulation was adopted.” (Spates v. Dameron Hospital Association (2003) 114 Cal.App.4th 208, 218, quotation marks omitted.)

Here,

Defendants argue that Plaintiffs do not allege facts showing a legal duty because Plaintiffs do not attach the governing documents or sufficiently allege their legal effect and a breach. Defendants state that this case involves a leak between independent homeowners and no common area is implicated, and, absent some contractual basis, they cannot have a legal duty in a dispute as between two independent homeowners.

In

opposition, Plaintiffs argue that the complaint alleges that the HOA was responsible for common areas and structural components; the dispute involved damaged structural beams; HOA approvals and execution of insurance documents were required; and Rexford affirmatively displaced a City-facilitated repair plan by announcing that it would take control of the work, use its own contractor, and assume responsibility for the cost and execution of repairs. (Compl., ¶¶ 3-4, 16-22, 25-27.) Additionally, Plaintiffs contend that the Complaint adequately pleads the legal effect of the governing documents, HOA’s maintenance obligations, Plaintiffs’ cooperation and efforts to obtain performance, Defendants’ breach, and resulting damages. To the extent the Court requires a more express allegation of contractual performance or excuse, Plaintiffs assert that issue is readily curable by amendment.

Plaintiffs

cite *Frances T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490, 499 for the proposition California law does not categorically exempt a condominium association from negligence liability.

In

Frances, the court held that, under certain circumstances, homeowner associations can be held liable for injuries sustained in criminal attacks occurring on the premises based on a tort theory parallel to the landlord’s duty of care to tenants. (*Id.* at p. 499.) In that

case, a plaintiff who had been raped and robbed in her condominium sued the association and its directors for failing to repair lighting and for ordering her to remove the external lighting she had installed. (Id. at p. 495-496.) The court found that the association could be held to the same standard of care as a landlord because the association conducted itself in a way similar to a landlord by providing security, maintaining common areas, etc. (Id. at p. 499.)

The

Court finds that the complaint fails to allege facts sufficient to state a cause of action for negligence. Plaintiffs have not adequately alleged the existence of a duty, or that the HOA or the Management Company breach such a duty. (Compl. ¶ 34.) Although Plaintiffs generally allege that the HOA was responsible for common areas and structural components, it is not clear how such a duty is implicated under these circumstances. Also, Plaintiff again refers to defendants collectively and fails to differentiate between the HOA and the Management Company. (See Compl. ¶ 24-28.)

But

the Court finds that leave to amend is appropriate because it is reasonably possible successful amendment could be made, and Plaintiffs assert that issue is readily curable by amendment.

The

Court notes that it is unclear why this cause of action is also labeled as negligence per se. Plaintiffs do not allege that Defendants violated a statute, ordinance, or regulation of a public entity. The moving and opposition papers do not address this.

Accordingly,

Defendants' motion for judgment on the pleadings is GRANTED WITH LEAVE TO AMEND with respect to the negligence claim.

C.

Breach Of Covenant of Good Faith and
Fair Dealing

"A

breach of the implied covenant of good faith and fair dealing involves something beyond breach of the contractual duty itself and it has been held

that bad faith implies unfair dealing rather than mistaken judgment.” (Careau & Co. v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 1371, 1394.) “If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated ... [T]he only justification for asserting a separate cause of action for breach of the implied covenant is to obtain a tort recovery.” (Id. at pp. 1394-1395.) To recover in tort for breach of the implied covenant, the defendant must “have acted unreasonably or without proper cause.” (Id. at p. 1395 [citations and italics omit].)

The

Court finds that the allegations in the complaint are inadequate to state a claim for breach of the covenant of good faith and fair dealing. As set forth above, Plaintiffs have not adequately pleaded a contract between themselves and the HOA and Management Company.

But

the Court finds that leave to amend is appropriate because it is reasonably possible successful amendment could be made, and Plaintiffs assert that issue is readily curable by amendment.

Accordingly,

Defendants’ motion for judgment on the pleadings is GRANTED WITH LEAVE TO AMEND with respect to the claim for breach of covenant of good faith and fair dealing.

Plaintiffs

may have thirty (30) days in which to serve and file an amended complaint.

Moving

parties to give notice.